

MINOR DEVELOPMENT (1 to 10 units as per HP5 of the Local Plan)

Application Details and Context	
Application Number	25/01011/OUT
Site Location	Land to The West of Sladburys Lane Clacton on Sea
Proposal	Outline Planning Application (all matters reserved)- Up to 30 dwellings plus associated infrastructure including a new access onto Sladburys Lane.
Parish / Settlement	Eastcliff (West)to
National Planning Policy Considerations	
Paragraph 55 of the NPPF states that local planning authorities should consider whether otherwise unacceptable development could be made acceptable through the use of conditions or planning obligations. Planning obligations should only be used where it is not possible to address unacceptable impacts through a planning condition. Paragraph 57 of the National Planning Policy Framework 2021 states that planning obligations must only be sought where they meet all of the following tests as set out in Regulation 122(2) of the Community Infrastructure Levy Regulations 2010*: a) necessary to make the development acceptable in planning terms; b) directly related to the development; and c) fairly and reasonably related in scale and kind to the development.	
Local Plan Policy Considerations	
Policy HP5 of the Section 2 of the adopted Tendring District Local Plan 2013-2033 and Beyond states that, the Council will work with partners and sports providers across the district to maintain, expand and improve the quality and accessibility of public open space, sports and recreational facilities of different types and will aim to achieve and exceed standards set out in the Council's 2017 Open Spaces Strategy or any future update. Policy DI1 states that all new development should be supported by, and have good access to, all necessary infrastructure. Where a development proposal requires additional infrastructure capacity to be deemed acceptable, mitigation measures must be agreed with the Local Planning Authority. Such measures may include financial contributions towards new or expanded facilities and the maintenance thereof. Contributions should be used towards the delivery of improvements, expansion, or new open spaces and/or sports facilities.	
Public Realm Assessment	
Play Space - current deficit:	Deficit of 2.22 hectares of equipped play in Clacton & Holland on Sea
Formal Play - current deficit:	Adequate formal open space in the area to cope with some future development
Settlement provision:	Eastcliff 1.1 miles from the development

Officer Conclusions and Recommendations	
Contribution necessary, related, and reasonable? <i>to comply with CIL Regs*</i>	- As the adjacent site has a play area and open space in excess of the 10% requirement for that development. This is adequate to cope with some additional development. - Please could it be clarified in a Reserved Matters application to show a clear pedestrian link from the new development to the existing.
Identified project*: <i>(In consultation with Town / Parish Council on upcoming projects or needs for maintenance)</i>	N/a
Signed: [Redacted Signature] Dated: 11/08/2025	

Notes of guidance for applicant / developer
To view a copy of Council's current Supplementary Planning Document (SPD) for Open Space Provision, please follow the link below. This document includes guidance on how the contribution will be calculated. Please note, this document is currently subject of a complete review and a new SPD to accompany adopted Local Plan Policies HP5 and DI1 will be published in due course, thus superseding the 2008 version. Provision of Recreational Open Space for New Development 2008 Please follow the link below to the current schedule of contributions. These figures remain under review until the new Local Plan SPD is formally adopted. All payments are index linked. * Open Space Provision SPD Addendum – Fees May 2021 For additional information on the legal agreement process, please follow the link below: Section 106 Guidance <i>*Using the Retail Price Index from two months from the date of any agreement as the base rate and the RPI from two months prior to the payment date to perform any calculation.</i>